5 Questions to Ask Any Testifying Expert About AI

1. Did you use an AI tool in preparing your expert report?

Why it matters: Transparency builds credibility and defends methodology.

- ☐ Identify whether AI assisted with research, analysis, or drafting
- ☐ Clarify if outputs were human-led or machine-assisted
- ☐ Document every step for defensibility and reproducibility

Tool types:

- ☐ Open Source: transparent, but check for data exposure risks
- ☐ Closed Source: secure, but be ready to explain "black-box" logic
- ☐ Proprietary: reliable if validated

2. Was AI used to formulate your opinions, or just to validate them?

Why it matters: This distinction defines the expert's role.

- ☐ Distinguish judgment from automation
- ☐ Outline where human reasoning guided conclusions
- ☐ Demonstrate oversight, not dependence

3. Can you describe the tools you used with high competency?

Why it matters: Courts need a clear understanding of AI's role.

- ☐ Explain technical steps in plain English
- ☐ Anticipate questions under new Federal Rules of Evidence
- ☐ Show that you remain the authority, not the algorithm

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4. Was the information you entered used to train the AI model?

Why it matters: Confidential inputs can unintentionally become public.

- ☐ Confirm model settings for data privacy and retention
- ☐ Avoid inputting privileged or identifying details
- ☐ Document how proprietary data was protected

5. Have you checked all citations back to their original sources?

Why it matters: AI can fabricate or misattribute references.

- ☐ Manually verify every citation against primary sources
- ☐ Flag and replace AI-generated inaccuracies
- ☐ Strengthen the credibility of your testimony

Clear answers to these five questions protect your credibility, and prove you're ready for the AI era.

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